

**SUPERIOR COURT OF CALIFORNIA  
COUNTY OF MARIN**

DATE: 6/11/26      TIME: 9:00 A.M.      DEPT: B      CASE NO: FL0002500

PRESIDING: HON. JAMES M. SCHURZ

REPORTER:

CLERK: A. URTON

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PETITIONER: JAN NEUMARK

and

RESPONDENT: JENNIFER CHRISTINA  
LYRA

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NATURE OF PROCEEDINGS: REQUEST FOR ORDER – CHILD CUSTODY/VISITATION

**RULING**

Jan Neumark (Father) filed a Request for Order seeking (1) joint legal custody, (2) joint physical custody, and (3) a 50/50 visitation schedule. Specifically, Father seeks to have the children, Otto Neumark (DOB 08/01/2018) and Zoe Neumark (DOB 08/01/2018), on Mondays and Tuesdays, Mother to have the children Wednesday and Thursday, with weekends rotating Friday-Sunday. When either parent is traveling, the children shall be in the care of the other parent.

Jennifer Lyra (Mother) filed a responsive declaration opposing Father's request and requests one midweek after school/dinner visit only in addition to alternating weekends for Father. Mother requests that the parties maintain joint legal custody and that she continues to have sole custody of the children when traveling in Brazil. Mother further seeks additional clarification regarding travel. Finally, Mother urges the Court to deny Father's request for first refusal.

The parties were referred to Marin Family Court Services for mediation, counseling and recommendations. Both parents were interviewed, and FCS submitted its detailed report May 19, 2026.

Parents reached agreements with respect to several matters addressed in this Request for Order. First, the parties agreed (1) to joint legal custody, (2) for Father to take a parenting class, (3) for both parents to participate in coparenting counseling, and (4) that neither parent would change the children's schools without consent of the other parent.

Parents separated three years ago and are currently practicing a 5/2/2/5 schedule. Father wants to continue with the existing schedule. Mother seeks modifications as outlined above.

The Court has reviewed the FCS report and the submissions of the parties. The Court finds good cause and that it is in the best interest of the children to adopt the recommendations from FCS as modified as follows:

1. Per an agreement reached in mediation, parents shall share joint legal custody.
2. Per an agreement reached in mediation, Father shall take a parenting class focused on parenting school-aged children.
3. Per an agreement reached in mediation, parents shall participate in coparenting counseling in order to align routines, structure, and rules in their respective households so that the children have consistency and predictability in both homes.
4. Per an agreement reached in mediation, neither parent shall change the children's school absent mutual parental consent.
5. Joint physical custody. However, Mother shall continue to have sole physical and legal custody of the children during any travel to Brazil by the children per the 11/18/24 Judgment and 6/23/22 stipulation and order in order to ensure the children's return back to California.
6. Parental Timeshare: The children shall be in Father's custody on alternate weekends from Friday after school through Monday morning drop off at school and each Wednesday and Thursday from after school until 7 PM (including dinner). The children shall be in Mother's custody at all other times when not in Father's custody.
7. Until further court order, first right of refusal shall not apply to Mother. When Mother is required to travel for work, the children shall remain on the regular custody schedule and shall be cared for by their maternal grandmother or Mother's partner. When Father is required to travel for work, the children shall be in Mother's custody during that time.
8. Both parents shall bring the children to school on time.
9. Following completion of the parenting class specified in paragraph 2, Father shall work with a parenting coach for a minimum of eight sessions.
10. Parents shall follow the recommendations of Zoe's nutritionist and dentist.
11. The children shall not miss school for the purposes of vacation. Vacations with the children shall be scheduled during school breaks. The children shall not be pulled out of school early to go to Tahoe more than once a semester.
12. The children shall not travel outside of the U.S. absent mutual parental consent.

13. Each parent shall ensure the children attend their regularly scheduled activities, therapy and medical appointments during their custody days and shall ensure that the children are brought to their activities and appointments on time.

Counsel for Mother shall prepare to prepare the findings and order after hearing.

*Parties must comply with Marin County Superior Court Local Rules, Rule 7.12(B), (C), which provide that if a party wants to present oral argument, the party must contact the Court at (415) 444-7046 and all opposing parties by 4:00 p.m. the court day preceding the scheduled hearing. Notice may be by telephone or in person to all other parties that argument is being requested (i.e., it is not necessary to speak with counsel or parties directly.) Unless the Court and all parties have been notified of a request to present oral argument, no oral argument will be permitted except by order of the Court. In the event no party requests oral argument in accordance with Rule 7.12(C), the tentative ruling shall become the order of the court.*

*IT IS ORDERED that evidentiary hearings shall be in-person in Department B. For routine appearances, the parties may access Department B for video conference via a link on the court website. Litigants in the virtual courtroom are required to leave the video screen on and wait for your case to be called.*

*FURTHER ORDERED that the parties are responsible for ensuring that they have a good connection and that they are available for the hearing. If the connection is inadequate, the Court may proceed with the hearing in the party's absence.*

**SUPERIOR COURT OF CALIFORNIA  
COUNTY OF MARIN**

DATE: 6/11/26      TIME: 9:00 A.M.      DEPT: B      CASE NO: FL0002593

PRESIDING: HON. JAMES M. SCHURZ

REPORTER:

CLERK: A. URTON

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| PETITIONER:    BRIAN KESTLER |  |
| and                          |  |
| RESPONDENT:    AUBREY CUBILO |  |

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NATURE OF PROCEEDINGS: REVIEW HEARING – CHILD CUSTODY/VISITATION;  
CASE PROGRESS CONFERENCE

**RULING**

This matter is before the Court on Aubrey Cubilo's (Mother's) Request for Order filed February 6, 2026, relating to child custody and visitation relating to the parties shared daughter Amelia Kestler Cubilo (DOB 04/25/2025).

The parties were referred to Marin Family Court Services (FCS) for mediation, counseling and recommendations. Mother and Brian Kestler (Father) were both interviewed. FCS submitted its report dated May 20, 2026.

The FCS report is detailed and encompasses a review of correspondence from Dr. Jessica Mantia. As Mother has been psychiatrically hospitalized three times in the past year with the last hospitalization less than four months ago, the FCS recommendation is for supervised visits to continue to be in place for at least six more months. Mother's visits can be supervised by a nonprofessional supervisor such as her mother who will be residing with her. As Mother is engaged in extensive mental health care through the VA including medication management and various therapies, it would be appropriate to expand the length of the supervised visits to provide Mother opportunities to spend longer periods of time caring for Amelia. This would also provide for more bonding time between Amelia and Mother which is important at this stage of Amelia's development.

The Court has reviewed the submissions of the parties, including the statements of agreement/disagreement and the declaration of Dr. Daniel Pickar. The Court finds good cause and that it is in the best interest of the child to adopt the recommendations of FCS as modified as follows.